NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH
NEW DELHI

CORAM:
Present- SMT. DEEPA KRISHAN
Hon'ble Member (T)

C.P.No. (CAA)-150 (ND)2018
SMT.INA MALHOTRA
Hon'ble Member (J)

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING OF NEW DELHI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 17.10.2018

NAME OF THE COMPANY: In the matter of Amalgamation
IN THE MATTER OF:

Novalty Enterprises Private Limited

.....Applicant No.1/Transferor Company

WITH

Swachh Industries Limited

.....Applicant No. 2/ Transferee Company

AND

Their Respective Shareholders and Creditors

SECTION OF THE COMPANIES ACT: 230-232

S.NO.	NAME	DESIGNATION	REPRESENTATION	SIGNATURE

Present- Mr. Kartikeya Goel, Advocate

ORDER

As Per Ms. Ina Malhotra (Member Judicial).

1. This petition by way of Second Motion has come up for Admission and for fixing the date for final hearing.

2. Learned Counsel for the Petitioner Companies submits that in terms of Order dated 03rd October, 2018 passed by this Tribunal in Company Application No. CA(CAA)-155 (ND)2018, the meeting of all Equity Shareholders and Unsecured Creditors of the applicant companies for the proposed Scheme of Amalgamation between the Transferor Company/ Applicant no.1 with Transferee Company/ Applicant No.2 had been dispensed with in view of the consent affidavits of all concerned being on record. There are no secured creditors of the applicant companies.

3. This petition is Admitted and the notice for final hearing is fixed for 27th November, 2018. Publication in the English and Hindi edition of daily newspaper "The Business Standard" having circulation in Delhi, be made not less than 10 days before the aforesaid date fixed for hearing.

4. In addition to the above public notice, both the applicant companies shall individually serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs (b)Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs (c) the Income Tax Department, (d) Official Liquidator and to such other Sectoral Regulatory Authorities, if any, who may govern the working of the respective Companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

5. Both the applicants, shall at least 7 days before the date of hearing of the petition file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above.

6. Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may file their objection on or before the date of hearing fixed herein, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed there under.

-Sd-

Deepa Krishan
Member (T)

-Sd-

Ina Malhotra
Member (J)